

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Talisayan	Team: Squad #11	CCRB Case #: 202100704	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 01/18/2021 4:30 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 7/18/2022	Precinct: 73		
Date/Time CV Reported Mon, 01/18/2021 4:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/01/2021 10:56 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mercurio	15135	960937	PSA 2
2. POM Jerome Venza	23906	963313	PSA 2
3. POM Brian Cheng	16145	957452	073 PCT
4. POM Meraj Chaudary	26016	968323	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Felsberg	04064	954801	PSA 2
2. POM Raul Avila	23933	962932	PSA 2
3. POM Jonathan Aquino	15569	957337	073 PCT
4. POM Arundeepp Chaggar	23208	962307	PSA 2
5. POM Nazmul Khan	05850	954020	PSA 2
6. SGT Kyle Murcott	4984	954164	PSA 2
7. POM Juan Lopez	21895	938875	PSA 2
8. POM Taimoor Arif	16079	966445	073 PCT
9. POM Maher Kader	11104	964580	073 PCT
10. POM Sali Cerimi	08390	965974	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Mercurio	Abuse: Police Officer Michael Mercurio refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
B . POM Jerome Venza	Abuse: Police Officer Jerome Venza refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
C . POM Brian Cheng	Force: Police Officer Brian Cheng used physical force against § 87(2)(b)	§ 87(2)(b)
D . POM Michael Mercurio	Abuse: Police Officer Michael Mercurio threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
E . POM Michael Mercurio	Discourtesy: Police Officer Michael Mercurio spoke discourteously to § 87(2)(b)	§ 87(2)(b)
F . POM Meraj Chaudary	Discourtesy: Police Officer Meraj Chaudary spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On January 18, 2021, § 87(2)(b) called 911 and was transferred to the IAB Command Center to file this complaint, which was received by the CCRB on February 1, 2021.

On January 18, 2021, at approximately 4:30 p.m., § 87(2)(b) § 87(2)(b) son, was arguing with his partner, § 87(2)(b) in front of § 87(2)(b) in Brooklyn. PO Michael Mercorio, PO Jerome Venza, PO John Felsberg, and PO Raul Avila of Police Service Area (PSA) 2 responded to the scene. The officers separated § 87(2)(b) and § 87(2)(b). After PO Avila spoke to § 87(2)(b) the officers decided to arrest § 87(2)(b). When the officers were handcuffing § 87(2)(b) asked PO Mercorio and PO Venza for their shield numbers. PO Mercorio and PO Venza allegedly did not provide their shield numbers to § 87(2)(b) (**Allegations A and B: Abuse of Authority**, § 87(2)(g) § 87(2)(b) tried to comfort § 87(2)(b) by reaching over the accessibility ramp railing in front of the building. PO Brian Cheng of the 73rd Precinct went up the railing and pushed § 87(2)(b) by her shoulders, allegedly stepping on her foot (**Allegation C: Force**, § 87(2)(g) § 87(2)(b) dropped his body to the ground while handcuffed. As officers lifted him up by his arms and legs, PO Mercorio raised his right fist and said, “I’ll fucking knock your teeth out!” (**Allegation D: Abuse of Authority**, § 87(2)(g) and **Allegation E: Discourtesy**, § 87(2)(g) PO Meraj Chaudary of the 73rd Precinct arrived to assist the officers. As the officers were placing § 87(2)(b) into a police vehicle for transport, PO Chaudary said, “Get in the fucking car!” (**Allegation F: Discourtesy**, § 87(2)(g)).

The investigation received body-worn camera (BWC) footage from the following officers: PO Venza, PO Mercorio, PO Sali Cerimi, PO Maher Kader, PO Taimoor Arif, PO Chaudary, PO Juan Lopez, Sgt. Kyle Murcott, PO Arundee Chaggar, PO Nazmul Khan, PO Cheng, PO Jonathan Aquino, PO Felsberg.

§ 87(2)(b) was not arrested or issued a summons during the incident. § 87(2)(b) was arrested for endangering the welfare of a child and assault with intent to cause injury [**Board Review 01**].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Mercorio refused to provide his shield number to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Jerome Venza refused to provide his shield number to § 87(2)(b)

BWC footage from PO Venza [**Board Review 02**] captures § 87(2)(b) on the phone as PO Mercorio and PO Felsberg are attempting to transport § 87(2)(b) who has lowered himself to the ground to resist arrest. From 12:03 to 12:27, § 87(2)(b) reads out loud PO Venza’s shield number. She then reads out loud PO Mercorio’s shield number. She does not make a specific request for any police officer’s shield number.

§ 87(2)(b) stated that she saw § 87(2)(b) on the ground, sitting upright with his hands and feet handcuffed. § 87(2)(b) asked PO Mercorio for his shield number and an officer she could not describe for his shield number. Both officers presented their chests to her but did not verbally provide their shield numbers to her [**Board Review 03**].

PO Mercorio did not recall § 87(2)(b) asking for his shield number. She read it out loud while possibly speaking to the IAB on the phone [**Board Review 04**].

PO Venza testified that § 87(2)(b) never asked for his shield number [**Board Review 05**].

BWC footage captures § 87(2)(b) reading PO Mercorio’s and PO Venza’s shield numbers out loud. She does not specifically request for either officer’s shield numbers. § 87(2)(g)

Allegation (C) Force: Police Officer Brian Cheng used physical force against § 87(2)(b).

PO Venza's BWC footage [Board Review 02] captures PO Cheng's interaction with § 87(2)(b) from the sidewalk in front of the building. § 87(2)(b) a Black woman in a red shirt, is standing on an accessibility ramp near officers while § 87(2)(b) who is handcuffed, yells at officers. From 10:37 to 11:20, § 87(2)(b) asks for § 87(2)(b) phone as he is bent over the accessibility ramp railing. She reaches through the railing as PO Mercorio and PO Felsberg restrain § 87(2)(b). At 11:37 § 87(2)(b) lowers himself to the ground. § 87(2)(b) reaches through the railing and pats § 87(2)(b) cheek. PO Mercorio places his left hand on § 87(2)(b) right side. He does not push her back. § 87(2)(b) begins yelling. At 11:57, a bandage is visible on the large toe of her right foot. At 12:00, § 87(2)(b) who has been on the phone, accuses PO Mercorio of pushing her. PO Venza explains to § 87(2)(b) that she is interfering with the arrest and asks her to back up. She remains near § 87(2)(b) who is still on the ground. At 12:50, PO Cheng is on the railing with § 87(2)(b). She yells, "Don't touch me!" PO Cheng extends his left hand to guide § 87(2)(b) up the ramp and away from § 87(2)(b). She uses her right hand to hang onto the railing and remain in place. PO Cheng removes her hand from the railing and pushes her back a step up the ramp.

BWC footage from PO Cheng [Board Review 06] captures the officer walking up the wheelchair ramp in front of the building, where § 87(2)(b) is reaching over the railing as officers are attempting to transport § 87(2)(b). From 1:05 to, PO Cheng asks § 87(2)(b) to step back. She yells and says, "Don't touch me!" With his left hand, he touches her abdomen and guides her back. He then removes her hands from the railing and uses his right hand to guide her back toward the building entrance.

Threat Resistance and Injury (TRI) report § 87(2)(b) prepared by Sgt. Murcott indicates that as police officers were effecting an arrest at § 87(2)(b) regarding an assault, § 87(2)(b) reached into § 87(2)(b) pockets to remove his cell phone. PO Mercorio extended a hand to guide the subject back one step from § 87(2)(b). It further notes that BWC footage from PO Felsberg indicates that § 87(2)(b) had a preexisting injury on her right foot [Board Review 07].

§ 87(2)(b) stated that she was on the opposite side of the railing while § 87(2)(b) was against it. She was facing her son and reaching over the railing with her right hand to comfort him, caressing the top of his head. PO Cheng went up the ramp – § 87(2)(b) did not initially see him – and told her to move, pushing her by both of her shoulders toward the stairs. He also stepped on her right foot's big toe. § 87(2)(b) did not move back when he pushed her. § 87(2)(b) told PO Cheng that he was stepping on her toe. PO Cheng told § 87(2)(b) to move again and pushed her by the shoulder again. § 87(2)(b) then pushed PO Cheng by his shoulders. An unidentified officer came and told § 87(2)(b) to step back. She complied and moved back. As a result of PO Cheng stepping on her foot, § 87(2)(b) who is a diabetic, sustained an injury to her toe, which was bleeding [Board Review 03].

PO Cheng testified that § 87(2)(b) was hovering above the officers, leaning over the railing, and yelling. § 87(2)(b) was the ground and leaning against the railing. PO Cheng and PO Aquino went up the handicap accessibility ramp and asked her to move because they did not want her near § 87(2)(b) while officers were interacting with him. § 87(2)(b) did not respond to the request. PO Cheng pushed § 87(2)(b) – he did not recall which hand he used – by her torso area and moved her approximately 5' away from the ramp. PO Cheng explained that he pushed § 87(2)(b) to move her away from officers as they were attempting to handcuff § 87(2)(b) [Board Review 08].

The investigation sent HIPAA forms to § 87(2)(b). Although she agreed to sign and return them, to date, the investigation has not received her signed HIPAA forms and was unable to obtain her medical records.

§ 87(2)(g)

§ 87(2)(g)

NYPD Patrol Guide Procedure 221-01 provides members of service with guidelines on the use of force. In situations in which de-escalation techniques to gain voluntary compliance are not safe or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. In determining whether the use of force is reasonable, MOS should consider the following factors. These factors include, but are not limited to, the nature and severity of the circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of service and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight [Board Review 10].

As captured in BWC footage, § 87(2)(b) tries to retrieve § 87(2)(b) phone while officers are trying to search an uncooperative § 87(2)(b) before he is placed in a marked police vehicle. § 87(2)(b) lowers himself to the ground and refuses to leave with the officers. § 87(2)(b) continues to stand near § 87(2)(b) despite PO Venza instructing her to step back numerous times and informing her that she is interfering with the arrest. § 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Michael Mercorio threatened § 87(2)(b) with the use of force.

Allegation (E) Discourtesy: Police Officer Michael Mercorio spoke discourteously to § 87(2)(b).

BWC footage from PO Felsberg [Board Review 11] captures § 87(2)(b) who is handcuffed, sitting on the ground as officers attempt to lift him up. From 13:30 to 14:14, § 87(2)(b) who is rear-cuffed, refuses to get up and leave with the officers. From 14:50 to 15:20, PO Felsberg and PO Mercorio lift § 87(2)(b) by his arms. § 87(2)(b) continues to remain on the ground. The officers lift him by his legs too. From 15:27 to 15:39, PO Mercorio, who is holding § 87(2)(b) by his left arm, creates a fist with his right hand and readies it as if to strike § 87(2)(b) head is not captured in the frame. PO Mercorio says, "I'll fucking knock your teeth out!" PO Mercorio lowers his hand, and the officers have § 87(2)(b) stand upright.

BWC footage from PO Mercorio (first recording) [Board Review 12] does not capture PO Mercorio threatening to strike § 87(2)(b) or using profanity. From 09:52 to 11:09, § 87(2)(b) is still standing. PO Mercorio, who is behind § 87(2)(b) holds onto § 87(2)(b) jacket. The footage ends before capturing the officers carrying § 87(2)(b)

BWC footage from PO Mercorio (second recording) [Board Review 13] captures the officers attempting to lift § 87(2)(b) from the ground. From 00:00 to 00:36 (there is no audio), PO Mercorio takes hold of § 87(2)(b) left arm. The officers move § 87(2)(b) a short distance until they let him stand. The footage does not capture § 87(2)(b) attempting to bite PO Mercorio.

BWC footage from PO Aquino, PO Cheng, PO Lopez, PO Chaudary, the officers who lifted § 87(2)(b) from the ground do not capture § 87(2)(b) attempting to bite PO Mercorio. The moment before PO Mercorio threatens to strike § 87(2)(b) is obscured by officers' arms or backs [Board Reviews 14, 06, 15, 16].

§ 87(2)(b) did not cooperate with the CCRB in providing a statement.

PO Mercorio testified that he and officers from PSA 2 and the 73rd Precinct lifted § 87(2)(b) from the ground. § 87(2)(b) was face up as he was lifted from the ground. While PO Mercorio was by § 87(2)(b) head and shoulders, § 87(2)(b) made a biting motion toward PO Mercorio's hand. PO Mercorio pulled his hand back. He did not recall whether § 87(2)(b) bit PO Mercorio's gloved hand. PO Mercorio said something he did not recall to § 87(2)(b) PO

Mercorio did not believe he cursed at § 87(2)(b). During his interview, PO Mercorio was presented with PO Felsberg's BWC footage [Board Review 11]. PO Mercorio acknowledged raising his fist and using profanity. PO Mercorio explained that he did so because § 87(2)(b) tried to bite his hand. PO Mercorio wanted to prevent § 87(2)(b) from biting him [Board Review 04].

PO Venza did not recall PO Mercorio using any profanity to § 87(2)(b) or threatening to use physical force against him [Board Review 05].

NYPD Patrol Guide Procedure 221-01 provides members of service with guidelines on the use of force. In situations in which de-escalation techniques to gain voluntary compliance are not safe or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. In determining whether the use of force is reasonable, MOS should consider the following factors. These factors include, but are not limited to, the nature and severity of the circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of service and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight [Board Review 10].

NYPD Administrative Guide 304-11 indicates that members of service must interact with members of the public in a professional manner [Board Review 17]. DAO-DCT Case Number 2013-10143 [Board Review 18] states that profane remarks – or excited utterances – made during stressful and dangerous encounters are not misconduct.

Although BWC footage captures PO Mercorio raising a clenched fist and threatening to strike § 87(2)(b) saying "I'll fucking knock your teeth out!", BWC footage from nearby officers does not capture § 87(2)(b) trying to bite PO Mercorio. At the time PO Mercorio threatened to strike § 87(2)(b) he was rear-cuffed and restrained by several officers. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Similarly, although BWC does not capture § 87(2)(b) attempting to bite PO Mercorio, § 87(2)(b) was rear-cuffed and restrained by several officers. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (F) Discourtesy: Police Officer Meraj Chaudary spoke discourteously to § 87(2)(b)

BWC footage from PO Chaudary [Board Review 16] captures the officers walking § 87(2)(b) to a police vehicle for transport. § 87(2)(b) refuses to enter the rear open door of the vehicle. § 87(2)(b) yells and says that he cannot fit inside the vehicle. At 04:46, as officers place § 87(2)(b) into the vehicle, PO Chaudary says, "Get in the fucking car!"

The investigation was unable to reach § 87(2)(b) for a statement.

PO Chaudary initially did not recall saying, "Get in the fucking car" to § 87(2)(b). During his interview, he was presented with his BWC footage [Board Review 16]. PO Chaudary acknowledged using profanity. PO Chaudary explained that he was trying to deescalate the situation [Board Review 19].

NYPD Patrol guide Procedure 304-11 indicates that members of service must interact with members of the public in a professional manner [Board Review 17]. DAO-DCT Case Number 2013-10143 [Board Review 18] states that profane remarks – or excited utterances – made during stressful and dangerous encounters are not misconduct.

PO Chaudary acknowledged using profanity as officers were placing § 87(2)(b) into a vehicle for transport. When PO Chaudary used profanity, § 87(2)(b) was in handcuffs and surrounded by several officers. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party [Board Reviews 20, 21].
- PO Michael Mercorio has been a member of service for six years and has been a subject in two CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
 - Case 202006509 involved allegations of Threat to Notify ACS, Discourtesy (twice), and Offensive Language, all of which were unsubstantiated.
 - Case 202006516 involved an allegation of Threat of Arrest, which was exonerated.
- PO Jerome Venza has been a member of service for five years and has been a subject in one CCRB complaint and one allegation.
 - Case 201704161 involved an allegation of refusal to provide name/shield number, which was unsubstantiated. § 87(2)(g)
[REDACTED]
- PO Brian Cheng has been a member of service for seven years and has been a subject in five complaints and 16 allegations, of which one was substantiated. § 87(2)(g)
[REDACTED]
 - Case 201609922 involved allegations of refusal to provide name/shield, which was closed as complainant unavailable.
 - Case 202002917 involved allegations of Force (twice), and Entry of premises, which are pending board review.
 - Case 202007351 involved allegations of Failure to Provide RTKA card, Refusal to Provide Name, Refusal to Provide Shield number, which were closed as unsubstantiated. An allegation of Discourtesy was substantiated. The Board recommended Command Discipline A.
 - Case 202101987 involved an allegation of Forcible Removal to Hospital, which was closed as complaint withdrawn.
 - § 87(2)(g)
[REDACTED]
[REDACTED]
- PO Meraj Chaudary has been a member of service for two years and has been a subject in one CCRB complaint and one allegation, Case 202101751, which is under active investigation.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 30, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint [Board Review 22].

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 11

Investigator: Inv. Mike Talisayan 05/31/2022

	Signature	Print Title & Name	Date
Squad Leader:	<u>Edwin Pena</u> Signature	<u>IM Edwin Pena</u> Print Title & Name	<u>05/27/22</u> Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date